



CHAPTER 23.

An Act to enable Provisional Orders to be made for removing any invalidity or doubt attaching to Marriages by reason of some informality. . [11th August 1905.]

A.D. 1905.
—

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1.—(1) A Secretary of State may, in the case of marriages solemnised in England which appear to him to be invalid or of doubtful validity by reason of some informality, make a provisional order for the purpose of removing the invalidity or doubt.

Provisional
orders for
removing
doubts as to
validity of
marriages.

(2) The draft of every such order shall be advertised in such manner as the Secretary of State thinks fit not less than one month before the order is made, and the Secretary of State shall consider all objections to the order sent to him in writing during that month, and shall, if it appears to him necessary, direct a local inquiry into the validity of any such objections.

(3) An order of the Secretary of State under this Act shall be of no force unless confirmed by Parliament, and the Secretary of State may bring in a Bill for confirming the order; and if while a Bill confirming any such order is pending in either House of Parliament a petition is presented against the order, the Bill, so far as it relates to the order, may be referred to a Select Committee, and the petitioner shall be allowed to appear and oppose as in the case of Private Bills.

2. This Act may be cited as the Provisional Order (Marriages) Act, 1905. Short title.

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